

Version

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Classification

Confidential

Siemens Energy Global GmbH & Co. KG, SE GT DG GC
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Name
Department

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Date

January 15, 2025

Project name:

Project reference:

Dear Madam or Sir,

We are pleased to offer you the following supplies and/or services as described in the specification and conditions below.

1. Scope of supply

This scope covers

- Pos 10: Support on developing the control concept of POD controller for VSC-HVDC system with Grid-Forming concept. The cost will be charged according to the actual working hours spent on the project.

2. Terms of delivery

2.1. Delivery times

The estimated delivery times for all positions are approximately:

- Pos 10: 09 months
after order placement. However, these delivery times depend on project load and are subject to discussion.

2.2. INCOTERMS

N/A for scope

Siemens Energy Global GmbH & Co. KG

Freyeslebenstr. 1
91058 Erlangen
Germany

siemens-energy.com

Registered office: Munich, Germany; Commercial registry: Munich, HRA 111200;
Personally liable partner: Siemens Energy Management GmbH;
Chairman of the Supervisory Board: Joe Kaeser;
Executive Board: Christian Bruch, President and Chief Executive Officer; Karim Amin, Maria Ferraro, Tim Oliver Holt;
Registered office: Munich, Germany; Commercial registry: Munich, HRB 241345
SCF V12

2.3. Invoicing and payment

Invoicing of the scope will be carried out in accordance with the delivery progress and the accounting plan, which will be prepared on request upon receipt of an order. In case of delayed delivery invoicing will be suspended. Invoices are payable by the end of the month in which the invoice has been issued.

3. Terms and conditions

The "Terms and Conditions for Deliveries and Services for Siemens Energy-internal Transactions (Siemens Energy Conditions)" in their current version will apply, unless stated otherwise in this offer.

3.1. Taxes, Duties and Fees

Any taxes, custom duties or other fees and charges incurred outside the Federal Republic of Germany are not included in our prices and will be borne by the customer.

3.2. Price Adjustment

The study efforts and prices outlined in this offer are based on the provided status of information at the date of offer. In the event of any substantial changes in the scope of work or services to be provided, including changes in quantity, quality, or specifications as well as required repetition of works due to changed information by the Customer, the price of the services may be adjusted accordingly. Such adjustments will be made in good faith and will be based on a reasonable estimate of the additional cost resulting from the change. Any adjustment in price will be agreed upon in writing by both parties before any additional work is commenced.

3.3. Period for Document Review

The Customer shall have a period of 30 days from the receipt of the provided documents to review and provide comments to the Contractor. If no comments are received within this cure period, the Contractor shall consider the contract as fulfilled and any change requests made thereafter will be subject to separate charging.

3.4. Destination Control Statement

Deliverables are controlled by the U.S. Government (when labeled with "ECCN" unequal "N") and authorized for export only to the country of ultimate destination for use by the ultimate consignee or end-user(s) herein identified. They may not be resold, transferred, or otherwise disposed of, to any other country or to any person other than the authorized ultimate consignee or end-user(s), either in their original form or after being incorporated into other items, without first obtaining approval from the U.S. Government or as otherwise authorized by U.S. law and regulations. Deliverables labeled with "AL" unequal "N" are subject to European / national export authorization. Deliverables without label, with label "AL:N" / "ECCN:N" or label "AL:9X9999" / "ECCN: 9X9999" may require authorization from responsible authorities depending on the final end-use, or the destination.

3.5. Liability

We shall under no circumstances be liable for: a) indirect, consequential, incidental, punitive or special damages; b) loss of production, loss of profit or revenue, payment of interest and other financing expenses, loss of information and data, loss of use of power system equipment, cost of purchase of replacement power; c) loss of damage to property or d) for claims by Customer for damages of Customer's purchasers or clients.

3.6. Partial ordering

This offer is calculated and valid as a complete package only. If components/ materials or services are ordered separately, we reserve the right to adapt our prices.

3.7. Export reservation

Siemens Energy shall not be obligated to fulfill this agreement if such fulfillment is prevented by any impediments arising out of national or international foreign trade or customs requirements or any embargos or other sanctions.

3.8. Reservation clause

The Parties acknowledge that the outbreak of the military conflict and / or any events related thereto (the "Conflict") between Ukraine and Russia is likely to negatively affect usual business activities around the globe and /or the execution of the Contract in various ways, whether known, unknown, whether foreseeable or unforeseeable. Therefore, the Parties agree that the Contractor shall not be liable for any negative impact or impediment of its performance obligations under or in connection with this Contract arising or being aggravated in connection with the Conflict (the "Impact").

In particular, without limiting the generality of the foregoing, unmanageable and unforeseeable disruptions in the availability of critical materials (e.g. steel products almost exclusively produced in the region of the Conflict) and unpredictable price increases for certain materials, energy and transportation are already visible in the global markets.

Therefore, the Contractor shall be entitled to an extension of time for execution and / or an adjustment of the contract price and / or other reasonable adjustments to the Contract to the extent required to mitigate and / or compensate the Impact. However, the Contractor shall remain obliged to exercise reasonable efforts to mitigate the Impact.

3.9. Ban on re-exports to Russia („No-Russia-Clause“)

- 3.9.1. Siemens Energy hereby prohibits to the Customer, and the Customer agrees not, to re-export and/or forward, directly or indirectly, to Russia or for use in Russia any goods (hardware and/or software and/or technology and related documentation, regardless of the mode of provision) sold, supplied, transferred or exported by Siemens Energy to the Customer under this Agreement.
- 3.9.2. Siemens Energy shall be entitled to terminate this Agreement by written notice in the event of a breach by the Customer of the obligation pursuant to 3.9.1 of this Agreement. Upon termination, the Customer shall pay to Siemens Energy all costs and damages incurred by Siemens Energy from such termination. In any case, the Customer shall pay Siemens Energy liquidated damages in the amount of 20% of the purchase price/delivered goods value.
- 3.9.3. Notwithstanding the provision in 3.9.2, the Customer shall indemnify and hold harmless Siemens Energy in full from and against any claim, proceeding, action, fine, loss, cost and damage asserted by public authorities or other third parties against Siemens Energy arising out of or relating to a breach by the Customer of the obligation under 3.9.1 of this Agreement and the Customer shall compensate Siemens Energy for all losses and expenses incurred resulting thereof.

3.10. Information for purchase order

Please place your order with reference to our ORG-ID **E7700902**

3.11. Validity

This quotation is valid until February 28th, 2025. After this date it is subject to our written confirmation.

4. Information for purchase order

Please inform us about AWW labeling with your purchase order.

5. Prices

- Pos 10: 73919 EUR

Total: 73919 EUR

Sincerely yours,

Siemens Energy Global GmbH & Co. KG

Dr. Jody Verboomen

Sarah Uebel